



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DEC 14 2001

DOT-E 12790

EXPIRATION DATE: October 31, 2003

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Environmental Management, Incorporated
Guthrie, OK
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a non-DOT specification, full opening head salvage cylinder of 30 gallon water capacity, for overpacking a damaged or leaking cylinder of hazardous materials. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.34(d) in that the salvage cylinder does not have a pressure relief device; §§ 173.201, 173.202, 173.203, 173.302, and 173.304 in that a non-DOT specification cylinder is not authorized, except as specified herein; and § 173.309 in that the salvage cylinder is not authorized.
5. BASIS: This exemption is based on the application of Environmental Management, Incorporated dated July 9, 2001, and additional information dated October 5 and 9, 2001 submitted in accordance with § 107.105 and the public proceeding therein.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identifica- tion Number	Packing Group
Hazardous materials, except acetylene, which are authorized in DOT specification cylinders; Fire extinguishers containing compressed or liquefied gas.	Class 3, Division 2.1, 2.2, 2.3, or 6.1 as appropriate or Class 8 materials (except Acetic Acid, glacial, Bromine, or Hydrochloric Acid)	As appro- priate	As appro- priate

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification full-opening head stainless steel salvage cylinder of welded construction, with provisions for securely positioning the damaged cylinder contained therein. The salvage cylinder is skid mounted. Each salvage cylinder must conform with Environmental Management, Incorporated drawing numbers EMI-1263HSV-1 dated 5/24/2001 on file with the Office of Hazardous Material Exemptions and Approvals (OHMEA). Each salvage cylinder must be designed, constructed and stamped in accordance with Section VIII, Division I of the ASME Code with a design margin of 4 to 1. Each salvage cylinder must conform to the following criteria:

Volume	30 gallons water capacity, nominal
Material	Shell: SA-312TP 316L Heads: SA-240 316L
Outside diameter	12.75 inches, nominal
Length	63 inches, nominal
Design wall thickness	0.500 inch minimum
Design service pressure	1,087 psig maximum
Test pressure	1,631 psig minimum
Openings on sidewall:	One 1/4 inch for pressure gauge One 3/4 inch for drain
Pressure relief device	None

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Welded attachments

Two lifting bars

Two skids held by four plates

b. TESTING - Each salvage cylinder must be visually inspected (internally and externally) and hydrostatically retested once every 2 years at a test pressure of at least 1,631 psig. The visual inspections must be performed in accordance with the Compressed Gas Association's Pamphlet C-6. The retest and inspection must be made by an employee that is familiar with the salvage cylinder and is trained and experienced in the use of the inspection and testing equipment. Records of retest must be made available to a DOT representative upon request.

c. OPERATIONAL CONTROLS -

(1) Salvage cylinders are authorized for use only with damaged or leaking DOT specification cylinders or fire extinguishers in conformance with § 173.309 whose contents are limited in pressure and volume so that if totally discharged into the salvage cylinder, the pressure in the salvage cylinder will not exceed: (1) 1,087 psig at 70°F for non-liquefied gases, and (2) 1,087 psig at 130°F for liquefied gases.

(2) Each salvage cylinder must be cleaned and purged after each use.

(3) Drivers and persons who load, unload or transport these cylinders must have been trained in handling, loading and unloading the cylinder. The loaded salvage cylinder must be delivered to the consignor or consignee as soon as practicable.

(4) Transportation is limited to motor vehicles owned or leased by the holder of this exemption or its customers or vehicles owned or leased by contract carriers employed by the exemption holder.

8. SPECIAL PROVISIONS.

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

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- b. A person who is not a holder of this exemption who receives a packaging covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.
- c. Each salvage cylinder must be plainly marked on opposite sides near the middle, in letters at least 2 inches high on a contrasting background "DOT-E 12790" and "SALVAGE CYLINDER".
- d. Each salvage cylinder must be labeled as prescribed for its lading.
- e. Each salvage cylinder must be secured to the motor vehicle by a securement system that conforms with the requirements contained in 49 CFR §§ 393.100 to 393.106.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

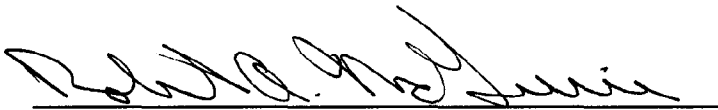
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

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12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: CWFREEMAN